

26STCV06684 26STCV06684

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCV06684 Hearing Date: August 19, 2026 Dept: 406

TERESA QUINTANILLA

SANCHEZ,

Plaintiff,

v.

ALDEN ENTERPRISES LLC,

et al.,

Defendants.

Case No.: 26STCV06684

Hearing Date: August 19, 2026

[TENTATIVE]

order RE:

defendants alden enterprises, llc's and

longwood management, llc's motion to compel arbitration

BACKGROUND

On March 2, 2026, Plaintiff Teresa

Quintanilla Sanchez filed this employment discrimination action against

Defendants Alden Enterprises, LLC; Longwood Management, LLC; Steven P. Haas;

and Marvin Doe.

On June 10, 2026, Defendants Alden Enterprises and Longwood Management filed the instant motion to compel arbitration. Plaintiff filed an opposition on August 6, 2026. Defendants filed a reply on August 12, 2026.

LEGAL STANDARD

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists....” (Code Civ. Proc, § 1281.2.) “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.)

DISCUSSION

“A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.” (Cal. Rules of Ct., Rule 3.1330.)

Here, Defendants recited the arbitration provision verbatim in the motion. (Mtn. 8:25-9:4.) The provision states as follows:

The Company and I mutually consent to the resolution of all claims or controversies (“claims”), past, present or future, whether or not arising out of my employment (or its termination), that the Company may have against me or that I (and no other party) may have against any of the following (1) the Company, (2) its officers, directors, employees or agents in their capacity as such or otherwise, (3) the Company's management

company, (4) the Company's parent, subsidiary and affiliated entities, (5) the Company's benefit plans or the plans' sponsors, fiduciaries, administrators, affiliates and agents, and/or (6) all successors and assigns of any of them.

(Ibid.)

Plaintiff does not dispute that this agreement exists or that she signed it. Plaintiff does not dispute that Defendants accurately recited the arbitration clause. Plaintiff does not contend that the agreement is unconscionable or otherwise unenforceable. Plaintiff's only point in opposition is that Defendants failed to present a copy of the agreement. The agreement was inadvertently omitted from the declaration of Steven Vodicksa. Defendants rectified the error by attaching the document to their reply.

Notably, Plaintiff received a copy of the agreement prior to the motion. (Daniel Decl. ¶ 3.) Thus, Defendants did not present any "new" evidence in the reply, and Plaintiff has not been deprived of the opportunity to address the agreement. Even without the attachment, Defendants complied with Rule 3.1330 by reciting the agreement verbatim. Plaintiff presents no challenge to the existence or enforceability of the agreement. Therefore, the Court finds that the parties have agreed to arbitrate the claims at issue.

CONCLUSION

Defendants Alden Enterprises, LLC's and Longwood Management, LLC's motion to compel arbitration is GRANTED. The case is stayed in its entirety.